

Mahendra Pratap Singh v. State of U.P. and Others

Allahabad High Court · Division Bench · 28 March 2011 · WRIT - C No. 5998 of 2011 · **Writ disposed; Clause 6.5 objections to the 14.12.2010 bill before the Executive Engineer within four weeks with deposit of Rs.75,000; speaking order after hearing preferably within three weeks; recovery on the 15.1.2011 citation stayed for three months or until that decision, whichever earlier; recovery on the bill to abide that decision; order vacated if objections or deposit not made in time**

HEADNOTE

Where a consumer challenges a recovery citation and a consumption bill, and the licensee's counsel states on instructions that the citation is for regular consumption and not for a pending provisional assessment for unauthorised use, the writ court will not quash the bill or citation. Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides that a consumer who disputes the accuracy of a bill may file a complaint or objections before the Executive Engineer, who is to decide them. The petition is disposed of by directing objections to the consumption bill before the Executive Engineer within four weeks together with a deposit of Rs.75,000; a speaking order after hearing, preferably within three weeks; stay of recovery on the citation for three months or until that decision, whichever is earlier; and recovery on the bill to abide that decision. Failure to file objections or to deposit vacates the order. The Court did not decide the correctness of the bill, the quantum, or the unauthorised-use provisional assessment.

FACTUAL SUMMARY

Mahendra Pratap Singh held a 7.5 HP electricity connection for a flour mill. He challenged a recovery citation dated 15 January 2011 seeking Rs.1,50,025 plus other charges and a consumption bill dated 14 December 2010 for Rs.2,76,751, claiming he had already made various deposits. A premises check had also led to a provisional assessment dated 21 August 2010 for alleged unauthorised use, to which he objected on 14 January 2011. After several listings, during which coercive action on the citation was stayed, counsel for the distribution licensee stated on instructions that the citation was for regular consumption on the connection and not for that provisional assessment.

The Division Bench accepted that characterisation and recorded the petitioner's willingness to object to the 14 December 2010 bill before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed consumption bill — objections before Executive Engineer; recovery stayed pending decision

QUESTION

Where a recovery citation is said to be for regular consumption rather than a pending unauthorised-use assessment, is a writ against the citation and the consumption bill to be decided on merits, or is the consumer to object under Clause 6.5?

HOLDING

The writ is disposed of without quashing the bill or citation. Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides that a consumer who disputes the accuracy of a bill may file a complaint or objections before the Executive Engineer, who is to decide them. On the licensee's statement that the 15.1.2011 citation was for regular consumption and not the 21.8.2010 unauthorised-use provisional assessment, the Court treated the 14.12.2010 bill as a consumption bill and directed the petitioner to file objections to that bill before the Executive Engineer (respondent no. 2) within four weeks together with a deposit of Rs.75,000. On receipt, the Executive Engineer is to decide the objections by a speaking order after hearing, expeditiously and preferably within three weeks. Recovery on the citation remains stayed for three months or until that decision, whichever is earlier; recovery on the bill will abide that decision. If objections or the deposit are not made in time, the order stands vacated. ¶ 3-5

QUALIFIER

The Court proceeded on the licensee's statement that the 15.1.2011 citation was for regular consumption, not the 21.8.2010 provisional assessment for unauthorised use.

FLAG Source PDF compiles listing orders of 1.2.2011–10.3.2011 (interim stay of coercive action on the 15.1.2011 citation from 15.2.2011) and this 28.3.2011 disposal (Satya Poot Mehrotra and Rajesh Chandra, JJ.). Pins are sequential unnumbered paragraphs of the 28.3.2011 disposal: (1) prayers; (2) connection, citation, bill, deposits, checking and 21.8.2010 provisional assessment with 14.1.2011 objections; (3) licensee's statement and finding that the citation is for regular consumption; (4) Clause 6.5 and the parties' submissions; (5) directions and disposal. The 14.1.2011 objections to the unauthorised-use assessment were not directed to be decided.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the 15.1.2011 recovery citation and 14.12.2010 consumption bill was not decided on merits. The consumer was sent to a time-bound Clause 6.5 objection before the Executive Engineer, with interim stay of recovery. ¶ 4-5

clause-6.5-statutory-remedy-disputed-bill The Court recited Clause 6.5 as the Code route when the consumer disputes the accuracy of a bill: complaint or objections before the Executive Engineer, who is to decide them. ¶ 4

billing-objection-to-executive-engineer-under-6.5 Objections to the 14.12.2010 bill were directed to the Executive Engineer (respondent no. 2) within four weeks with a deposit of Rs.75,000, to be decided by a speaking order after hearing, preferably within three weeks. ¶ 5

recovery-citation-kept-in-abeyance-pending-fresh-objection Recovery pursuant to the 15.1.2011 citation remains stayed for three months or until disposal of the Clause 6.5 objections, whichever is earlier; recovery on the bill will abide the Executive Engineer's decision. The stay falls away if objections or the Rs.75,000 deposit are not made in time. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE ELECTRICITY BILL DATED 14.12.2010 AND THE RECOVERY CITATION DATED 15.1.2011

Left to the Executive Engineer's speaking order on the Clause 6.5 objections. The Court did not quash either instrument. ¶ 5

NOT DECIDED — VALIDITY AND QUANTUM OF THE PROVISIONAL ASSESSMENT DATED 21.8.2010 FOR ALLEGED UNAUTHORISED USE, AND THE OBJECTIONS DATED 14.1.2011 TO THAT ASSESSMENT

Counsel for the licensee stated that the 15.1.2011 citation was not in regard to that provisional assessment. The Court accepted that characterisation and did not direct a decision on the 14.1.2011 objections or examine the unauthorised-use demand. ¶ 2-3

NOT DECIDED — WHETHER PAID AMOUNTS SHOULD BE ADJUSTED AFTER EXCLUDING COMPOUND COST AND PENALTY, AND WHETHER THE BALANCE SHOULD BE TAKEN IN INSTALMENTS

Prayer (II) of the writ. Not granted as such; recovery on the bill is to abide the Executive Engineer's decision on the objections. ¶ 1, 5